8	**Navarro v. Brentwood Home, LLC** **2023-01308122** Motion for determination of good faith settlement	The motion of defendant, cross-defendant, and cross-complainant Brentwood Home, LLC, for an order determining that the settlement that it entered into with plaintiff Juan Rodriguez Navarro is in good faith for the purposes of Code Civ. Proc. § 877.6 is DENIED. Co-defendant, cross-complainant, and cross-defendant J.V. Manufacturing opposes the motion. A determination by a court that a settlement was made in good faith under section 877.6 bars any other joint tortfeasor or co-obligor from asserting further claims against the settling party for equitable comparative contribution or partial or comparative indemnity based on comparative negligence or comparative fault. Code Civ. Proc. § 877.6(c). See *Fullerton Redevelopment Agency v. Southern California Gas Co.* (2010) 183 Cal.App.4th 428, 431. The non-settling parties get the benefit of an offset against the plaintiff in the amount of the settlement. Code Civ. Proc. § 877. If a motion for determination of good faith settlement is unopposed, a barebones motion that sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case is sufficient for the determination. *City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1261. However, where the motion is contested, subdivision (d) of section 877.6 sets forth a workable ground rule for the hearing by placing the burden of proving the lack of good faith on the contesting party. *City of Grand Terrace v. Superior Court, supra*, 192 Cal.App.3d at p. 1261. Once the settling party presents a showing of the settlement, the burden of proof on the issue of good faith shifts to the non-settling party who asserts that the settlement was not made in good faith. *Ibid.* If contested, declarations by the non-settling party should be filed which, in many cases, could require the moving party to file responsive counter declarations to negate the lack of good faith asserted by the non-settling contesting party. *Id.* at p. 1262. The ultimate determinant of good faith is whether the settlement is grossly disproportionate to what a reasonable person at the time of settlement would estimate the settlor's liability to be. *City of Grand Terrace v. Superior Court, supra*, 192 Cal.App.3d at p. 1261. The intent and policies underlying section 877.6 require that a number of factors be taken into account, including a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a

		recognition that a settlor should pay less in settlement than he would if he were found liable after a trial. *Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488, 499. Other relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of non-settling defendants. Ibid. Practical considerations require that the evaluation be made on the basis of information available at the time of settlement. *Ibid.* A defendant's settlement figure must not be grossly disproportionate to what a reasonable person, at the time of the settlement, would estimate the settling defendant's liability to be. *Tech-Bilt, Inc. v. Woodward-Clyde & Associates, supra*, 38 Cal.3d at p. 499. The party asserting the lack of good faith, who has the burden of proof on that issue, should be permitted to demonstrate, if possible, that the settlement is so far "out of the ballpark" in relation to these factors as to be inconsistent with the equitable objectives of the statute. Id. at pp. 499-500. Such a demonstration would establish that the proposed settlement was not a "settlement made in good faith" within the terms of section. Here, the moving party represents that it settled with the plaintiff for $1 million, which is the policy limit of its primary insurer. It contends that it is a co-employer of the plaintiff and does not have any liability for his damages under the workers' compensation exclusivity rule. It contends that it settled with plaintiff to avoid going to trial and incurring further costs. The moving party's motion is supported solely by the declaration of attorney Erin E. Fordham. In her declaration, Ms. Fordham declares that the action arises from a workplace injury in which plaintiff sustained injuries while employed by moving party at its facility in Fullerton. She declares that plaintiff was placed with moving defendant through a staffing agreement between moving defendant and Fairway Staffing Services and that Fairway Staffing Services obtained and maintained workers' compensation coverage that covered both. She declares that moving defendant disputes liability but entered into a settlement to avoid trial and incur further costs. In opposing the motion, responding party J.V. Manufacturing elaborates on the details of the accident and the injuries sustained by plaintiff, and it has submitted substantial evidence with its opposition that includes excerpts of the plaintiff's deposition and response to interrogatories and the further response of moving party to a set of requests for admissions.

		Responding party contends that plaintiff was severely injured at moving defendant's manufacturing facility with he was using a repurposed 20-year-old vertical baler to crush mattress foam in direct contravention of the manufacturer's specifications and without any training, instructions, or warnings. Specifically, it contends that both of the plaintiff's arms were crushed by a 550-pound planer and that he continues to experience severe pain on a daily basis. Responding party contends that plaintiff's special damages for medical care exceed $159,000 and he will probably undergo future surgery. It further contends that plaintiff has incurred damages for both lost earnings and earning capacity and will probably be awarded a multi-million dollar verdict once non-economic damages are included. Responding party disputes that the moving party has no liability under the workers' compensation exclusivity rule because, among other things, it admitted in its response to the set of requests for admissions that it was not plaintiff's employer. It further contends that the moving party bears most of the responsibility for the plaintiff's injuries and that the $1 million policy limit settlement does not accurately reflect its share of liability. Responding party also contends that moving party failed to mention anything about its financial condition and notes that it disclosed in discovery that it had an umbrella policy with a policy limit of $10 million. In light of these arguments and the evidence presented by responding party, it has shown that the settlement between moving party and plaintiff is not "within the ballpark" in relation to the *Tech-Bilt* factors as to be consistent with the equitable objectives of the statute, notwithstanding the settlement figure of $1 million. Moving party has not submitted any declarations or evidence with its reply to rebut the showing by responding defendant; it has simply reiterated its arguments. The motion of defendant, cross-defendant, and cross-complainant Brentwood Home, LLC, for an order determining that the settlement that it entered into with plaintiff Juan Rodriguez Navarro is in good faith for the purposes of Code Civ. Proc. § 877.6 is DENIED.
9	**Madani v. BMW of North America, LLC** 2025-01461171 Motion for Judgment on the Pleadings	Defendant BMW of North America, LLC's Motion for Judgment on the Pleadings is DENIED. The California Supreme Court in *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 201 ruled: Thus, the basic framework of the Song-Beverly Act distinguishes between new and used products and 'provides similar remedies in the context of the sale of used goods, except that the manufacturer is generally